

SGSITS MUN 2026

UNHRC Study Guide

Agenda:

Deliberating upon the Rights of Peoples in Conflict Areas, with Special Emphasis on the Humanitarian Issues in Afghanistan.

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Letter from the Bureau

Namaste Delegates,

It is our pleasure to welcome you to the Second Edition of SGSITS MUN and the committee UNHRC .This year, the agenda of UNHRC shall be ‘Deliberating upon the Rights of People in Conflict Areas, with Special Emphasis on the Humanitarian Issues in Afghanistan.’

The humanitarian situation in Afghanistan since 2021 raises several questions about women's rights, freedom of expression, freedom of religion and belief, and the protection of displaced people.

The committee shall discuss the root cause of this humanitarian crisis along with its impact on the global scenarios.The committee shall also discuss the existing solutions which are recommended along with strategies for their fixing their existing loopholes and better implementation.

This study guide is brief and informative and serves as a starting point of research for the delegates. The major topics and subtopics have been elaborated upon. The delegates are requested to study this guide properly but should not limit their research to the study guide and are expected to be well-researched according to their portfolios. The committee is expected to address various concerns regarding the people in Afghanistan and reach a consensus on innovative solutions for making their conditions better and ensuring their rights are upheld. In case of any queries, please feel free to contact us. We are extremely excited to meet all of you and hope that this committee will be a great experience. We will try our best to make this a memorable experience for all of you filled with fruitful debates and ingenious solutions.

Warm regards,

Shreya Vyas, Chairperson

Tarishi Shah, Vice-Chairperson

Deeti Dubey, Rapporteur

Bureau, UNHRC

Introduction to Committee and Agenda

UNHRC stands for the United Nations Human Rights Council, the main intergovernmental body within the United Nations system responsible for promoting and protecting human rights globally. It was established in 2006, under the UNGA and has its headquarters located in Geneva, Switzerland. UNHRC protects the rights of all people, across all nations. It acknowledges all basic rights discussed in the Charter of the United Nations, the Universal Declaration of Human Rights, and international human rights laws and treaties.

The UNHRC was established through resolution 60/251. It replaced the United Nations Commission on Human Rights (UNCHR). It operated with 47 members for a term of 3 years. These members are from the 193 countries that are a part of the United Nations. In its regular sessions it periodically reviews the human rights records along with discussions on present time global situations.

Post the re-establishment of the Taliban Regime in 2021, the situation of civilian rights has turned into a humanitarian crisis. Several restrictions of the rights of women and girls have been imposed to the extent of it affecting their basic rights. Freedom of expression and speech have also been regulated and the Freedom of conventional and social media has also been controlled. These are a few of the several rights as mentioned in the Universal Declaration of Human Rights that have been violated post the regime change.

There are several existing frameworks to protect these rights but their impacts are limited due to various loopholes and implementation restrictions.

Key Terms

1. **De facto authorities:** the Taliban administration, in control but not universally recognised.
2. **Non-refoulement:** the rule against returning a person to a place where they face serious harm.
3. **Gender persecution:** a crime against humanity under the Rome Statute.
4. **UNAMA:** UN Assistance Mission in Afghanistan.
5. **ANDSF:** the former Afghan National Defence and Security Forces.
6. **ISIL-K:** the Islamic State Khorasan Province, a terrorist group active in Afghanistan.
7. **Self-censorship:** journalists limiting their own reporting out of fear.
8. **Taliban :** Islamist Fundamentalist government of Afghanistan.
9. **NATO :** North Atlantic Treaty Organisation.
10. **Sharia :** Sharia is the religious and moral legal system of Islam, derived from the Qur'an and the teachings of the Prophet Muhammad.
11. **Triply displaced :** describes refugees or internally displaced persons (IDPs) who have been uprooted by conflict or economic collapse in three successive cycles.
12. **Geneva Convention :** a set of four international treaties adopted in 1949 that set the rules for how people must be treated during war .

HISTORICAL BACKGROUND AND RISE OF THE TALIBAN

Etymology and Linguistic Origins

The word Taliban originates from the Pashto language, functioning as the plural form of Talib, which translates directly to "**student**". Rooted in the Arabic term for seeker of knowledge, the name reflects the **movement's origins among young refugees and madrasa (religious school) students** who emerged from conservative Islamic institutions along the Afghan-Pakistan border region during the late 20th century.

The Soviet-Afghan War and the Power Vacuum (1979–1989)

In December 1979, the **Soviet Union militarily intervened in Afghanistan** to stabilize a struggling socialist government in Kabul. In response, an assortment of anti-communist guerrilla factions, collectively known as the **Mujahideen, mobilized against Soviet forces**. These fighters received **significant financial, logistical, and military support from foreign powers, notably the United States, Saudi Arabia, and Pakistan**. Following a decade of brutal warfare, Soviet forces withdrew completely in 1989, leaving behind a fragmented political landscape and a collapsing state infrastructure.

Civil Strife and the First Rise to Power (1992–1996)

Following the fall of the Soviet-backed Najibullah regime in 1992, **the Mujahideen commanders failed to form a unified, stable government**. Instead, Afghanistan descended into a devastating **civil war** marked by warlordism, widespread corruption, and insecurities. Hence in 1994, **Mullah Omar founded the Taliban** in southern Afghanistan around Kandahar, promising order, security and anti-corruption measures rooted in their fundamentalist interpretation of Islamic law. By September 1996, the group successfully captured Kabul, establishing the **Islamic Emirate of Afghanistan**.

NATO Intervention and Resistance (2001–2021)

The foreign presence in **Afghanistan shifted dramatically following the September 11 terrorist attacks in 2001**. When the Taliban leadership **refused to extradite** Al-Qaeda leader Osama bin Laden, a U.S.-led Coalition and NATO forces initiated military operations that swiftly dismantled the Taliban's formal government. A Western -backed democratic framework was instituted, giving rise to the **Islamic Republic of Afghanistan**. However, the **Taliban reorganized as an insurgent force**

within border regions and rural provinces, **waging a prolonged war against both foreign coalition troops and Afghan government security forces.**

The Return to Power and Fall of the Democratic Government (2021)

Over two decades, systemic governance issues, corruption within the international aid apparatus, and structural weaknesses in the Afghan National Defense and Security Forces eroded public trust in the central government. The signing of the **Doha Agreement between the United States and the Taliban set a timeline for total international troop withdrawal.** As foreign coalition forces phased out their presence, the Taliban launched a rapid military offensive across provincial capitals. In **August 2021, as foreign forces completed their withdrawal,** Afghan government structures collapsed, leading to the Taliban re-entering Kabul and establishing control without significant resistance.

Supremacy of Sharia Over Constitutional Governance

Central to the Taliban's governance philosophy is the **absolute doctrine of divine sovereignty over human-made legislation.** Under the Western-backed 2004 Constitution, Afghanistan operated as an Islamic Republic that incorporated **codified rights, a legislative parliament, and judicial checks.** Following their return in 2021, the Taliban effectively set aside the 2004 Constitution, **replacing democratic legal mechanisms with an uncodified framework centered on their strict interpretation of Hanafi jurisprudence and Sharia** (Islamic law). Under this framework, political authority is centralized in a **Supreme Leader** (Amir al-Mu'minin), whose **decrees supersede secular statutes, administrative courts, and international human rights frameworks.**

HUMAN RIGHTS VIOLATED

WOMEN

Overview

UN Women (August 2026) describes the situation as the **world's most severe women's rights crisis** and a global outlier with no modern parallel. It says Taliban authorities have issued **more than 100 decrees** targeting women and girls since

August 2021, restricting education, work, health, justice and public life. The Taliban argue that they respect women's rights within their interpretation of Islamic law and Afghan culture.

Timeline of Key Restrictions

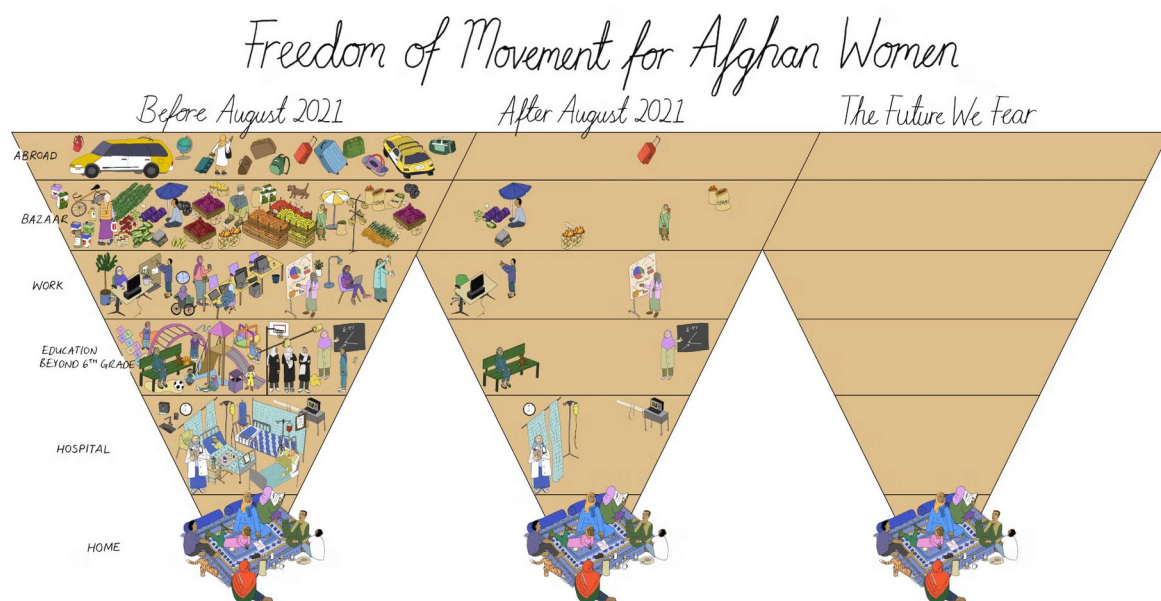
- Sept 2021 - Girls kept out of secondary school; women removed from many government jobs
- Mar 2022 - Planned reopening of girls' secondary schools reversed on the day
- May 2022 - Decree requiring women to cover fully in public
- Nov 2022 - Women barred from parks, gyms and public baths
- Dec 2022 - Women barred from universities and from working in NGOs
- Apr 2023 - Women barred from working for the UN in Afghanistan
- Jul 2023 - Beauty salons ordered closed
- Aug 2024 - Vice and Virtue law: women's voices in public restricted, face covering, male guardian (mahram) requirements
- Dec 2024 - Women barred from medical training institutes (nursing, midwifery)
- 2025 - 26 - Further decrees; UN Women flags two recent decrees, one of which it says implicitly permits child marriage (verify decree details)

Impact: Key Figures

The situation of women and girls in Afghanistan has deteriorated significantly since 2021. UNESCO estimates that **2.4 million girls have been barred from secondary education**, making Afghanistan the only country where girls are prohibited from secondary school and women from university. Restrictions on freedom of movement have also intensified, with **half of women leaving their homes only once or twice a month**, while in rural areas, **62% report rarely leaving home**. Economic participation remains severely restricted, with only **7% of women employed compared with 84% of men**, while UN Women estimates that the exclusion of women could result in **up to US\$1 billion in lost GDP between 2024 and 2026**. Restrictions are also threatening Afghanistan's health and education systems, with UN Women warning that the country could lose more than **25,000 female teachers and health workers by 2030**, a particularly serious concern because cultural restrictions can prevent male health workers from treating women. These restrictions have also contributed to a worsening **mental health crisis** among women and girls. At the humanitarian level, more than **10.7 million women and girls are expected to need aid in 2026**, while restrictions on female NGO workers, funding cuts, and the potential closure of women-led organisations are reducing access to essential services. Enforcement has further intensified these pressures, with UNAMA reporting **hundreds of arbitrary arrests linked to dress-code enforcement** and corporal punishment of women, including **39 women in the first quarter and 25 in the second quarter of 2026**.

Legal Framework

- **CEDAW**, ratified by Afghanistan. Articles 10 (education), 11 (work), 12 (health), 7 (public life).
- **UDHR Articles 2, 23, 26.**
- **CRC** (girls' education, child marriage).
- **ICCPR** (non-discrimination, movement).
- **UN Security Council Resolution 1325** (women, peace and security).
- **Rome Statute Art. 7(1)(h)**: the ICC warrants frame these policies as the crime against humanity of persecution on gender grounds. The campaign for the term "**gender apartheid**" to be recognised in international law is a current debate delegates may want to know.



MEDIA

Overview

Freedom of expression and access to information are fundamental human rights protected under **Article 19 of the UDHR and Article 19 of the ICCPR**. In Afghanistan, these rights are particularly significant because independent media is one of the few mechanisms through which violations of other human rights can be documented and brought to international attention. When journalists are unable to report freely, abuses can remain undocumented and victims may have little opportunity to seek accountability.

Before August 2021, Afghanistan had one of the region's most diverse and active media sectors, with hundreds of media outlets and thousands of journalists. Following the Taliban takeover, however, the sector suffered a severe decline. According to Reporters Without Borders (RSF), **43% of media outlets closed within three months of the takeover**, while approximately two-thirds of the estimated 12,000 journalists either left the profession, went into exile, or stopped working.

Current State

- **Ranking:** Afghanistan was **175th out of 180** in the 2026 RSF World Press Freedom Index (score 19.51, up slightly from 17.88). It ranks 178th on the legislative indicator and 177th on safety.
- **Detentions:** RSF says **four journalists** are in Taliban custody in 2026. UN Special Rapporteur Richard Bennett called in May 2026 for their immediate release. UNAMA's April–June 2026 report documented further journalist detentions and the suspension or restriction of outlets including Radio Bamyān, Lawang Radio and Rah-e-Farda TV.
- **Control by multiple bodies:** Journalists receive instructions from ministries, the intelligence service and the morality ministry. Media rules require content to align with Taliban policy, with licence suspension as a penalty for criticism. UNAMA said such rules increase fear and self-censorship.
- **Exile media:** Journalists working with foreign or exile outlets are accused of espionage or of damaging the Taliban's image.
- **Economic strangulation:** Aid cuts and the economic crisis have collapsed advertising and funding, closing more outlets.
- **Restrictions on content and platforms:** Rules in several provinces against images of living beings, bans on women's voices and faces in some media settings, and internet restrictions, including a nationwide communications blackout in late September–October 2025 (verify exact dates and scope).
- **Women journalists face the sharpest restrictions:** bans on working in many roles, requirements to cover their faces on air, and exclusion from public events and interviews. UNAMA notes that female journalists face heightened risks and obstacles. Many have fled the country.

Legal Framework

- UDHR Art. 19 and ICCPR Art. 19 (permitted restrictions must be legal, necessary and proportionate)
- UN Plan of Action on the Safety of Journalists and the Issue of Impunity
- UNESCO's mandate on press freedom
- Afghanistan's own former Mass Media Law (now effectively replaced by Taliban rules)



CIVILIANS

Background

Afghanistan has seen decades of conflict, but the current human rights crisis dates from 15 August 2021, when the Taliban retook Kabul and the Islamic Republic collapsed. The Taliban now govern as a de facto authority. The Taliban have not been given Afghanistan's seat at the UN. A small number of states have opened diplomatic channels, and Russia formally recognised them in 2025. Rule is by decree from the Supreme Leader in Kandahar, and there is no constitution, elected legislature or independent judiciary. This matters for the committee because victims have almost no domestic remedy.

The country is also in a humanitarian emergency. Decades of war, drought, earthquakes, a collapsed banking sector, falling aid budgets and mass forced returns from Iran and Pakistan have left a large share of the population dependent on assistance. UN Women alone estimates that more than 10.7 million women and girls need humanitarian aid in 2026.

Categories of Violations Documented by the UN

a) Right to life, and killings of former officials. The Taliban announced a general amnesty in 2021. UNAMA nonetheless keeps documenting killings and detentions of former government officials and former Afghan security force (ANDSF) members. In Jan–Mar 2026 it recorded at least 5 killings, 23 arbitrary arrests and 9 cases of torture or ill-treatment of such people. In Apr–Jun 2026 it recorded at least 8 killings and 29 arbitrary arrests. Those forcibly returned from neighbouring states are especially at risk, which links directly to non-refoulement.

b) Corporal punishment, torture and the justice system. Taliban courts carry out public floggings, and UNAMA has also reported public executions. Between January and March 2026, UNAMA documented corporal punishment of **at least 312 people (269 men, 39 women, 4 boys)**. For April–June 2026 the figure was **at least 137 (112 men, 25 women)**. There is no right to a lawyer or appeal in practice, and trials fall short of fair-trial standards under ICCPR Article 14.

c) Arbitrary arrest by the morality police. The Ministry for the Propagation of Virtue and Prevention of Vice enforces dress and behaviour codes. In Q1 2026 UNAMA recorded **at least 336 arbitrary arrests and detentions**, plus 59 cases of ill-treatment, linked to offences such as dress codes, men's beard and haircut rules, playing music, and observing Valentine's Day. The morality law (August 2024) turned these rules into a formal legal system.

d) Religious and ethnic minorities. In its April–June 2026 report UNAMA reported the closure of **at least 33 Ismaili prayer halls in Badakhshan** and restrictions on Shia ceremonies, including arrests linked to Ashura observances. Hazaras, Shia and Sikhs/Hindus have faced long-standing discrimination, and the Hazaras have also suffered mass-casualty attacks, many claimed by ISIL-K. Delegates should note that the Taliban are not the only perpetrators. ISIL-K and other armed opposition groups

have also targeted civilians, and armed opposition fighting, for example in Badakhshan, is reported again in 2026.

e) Civic space. Protests are suppressed, civil society and human rights defenders operate under threat, and the Afghanistan Independent Human Rights Commission was abolished in 2022.

f) Humanitarian access and forced returns. Restrictions on women aid workers (see Section 3) limit aid delivery. Meanwhile Iran and Pakistan have deported or pressured hundreds of thousands of Afghans to return in recent years (check the latest IOM/UNHCR figures), often to areas without housing, jobs or services.

The Taliban's Position

The Taliban say their policies reflect Islamic law and Afghan cultural norms, call UN findings biased, and describe criticism as interference in internal affairs. They deny that women's rights are violated. A Vice and Virtue spokesperson publicly rejected UNAMA's 2026 findings. A good delegate understands this argument well enough to answer it. The ICC Prosecutor has said that no interpretation of Sharia can justify violating the fundamental rights set out in treaties Afghanistan has signed.

Displaced People and Key Refugee Events

Afghan displacement began on a large scale with the 1979 Soviet invasion and continued through the civil war and Taliban rule of the 1990s, with large returns after 2001. The fall of Kabul in 2021 brought new outflows. Afghanistan is at the centre of one of the world's largest return movements. Since **Pakistan's October 2023 drive against undocumented foreigners** and the **stepped-up deportations from Iran in 2025**, over six million Afghans have returned, including an unprecedented **2.9 million in 2025** and another **600,000 in the first four months of 2026**. Over half are women and children, and many were born and raised abroad with few ties to the areas they return to. **Iran still hosts roughly 1.65 million refugees and others needing protection**, and some families are "**triply displaced**": they fled Afghanistan, were displaced again in Iran, and are now returning to a country with few jobs or services.

These returns have **strained an already fragile economy**. The World Bank links the population growth from returns to a **4% fall in GDP per capita in 2025**. Those who return are settling in **eastern and northern districts** that were already poor, where they compete with residents for jobs, housing and water, and access to health care, clean water and education has fallen sharply, especially in rural areas and for women and girls. **Nine in ten households report coping by cutting meals, selling assets or taking on loans**. It is worth asking whether aid for returnees alone is fair to host communities, and whether support should be built around areas of return rather than individual groups. Livelihoods are the biggest obstacle, and women face the hardest time. A **UNHCR survey found that just over half of returnees found some work, often informal, while fewer than a quarter of women did**. Women-headed households are among the hardest hit, and UN officials stress that female aid workers must be able to reach female returnees. The risks of inaction are serious. UN officials warn of secondary displacement, deeper poverty and rising tension between returnees and host communities, and some returnees are already considering leaving again, mostly out of necessity.



Existing Frameworks and Solutions and their Loopholes

Several tools are already in place for Afghanistan, though each leaves open questions. A **Special Rapporteur on Afghanistan**, an independent expert, monitors the situation and reports to the Council and the General Assembly, but can only recommend, which raises the question of what gives a recommendation weight when those it addresses are not inclined to act on it. An **Independent Investigative Mechanism** collects and preserves evidence of serious abuses so that it can support future accountability, though it cannot prosecute, and evidence is only as useful as the forum prepared to receive it. The **International Criminal Court has taken steps against senior figures for gender persecution**, yet it relies on states to carry out arrests, and its jurisdiction is not accepted by the authorities, so the distance between a warrant and its enforcement remains wide. Treaties such as **CEDAW offer a legal basis for protecting women's rights**, but their implementation is not flawless. Humanitarian agencies continue to assist millions of people, but funding falls short of need, and relief that keeps people alive does not always address why they need it. Taken together, these efforts show that monitoring, evidence and aid are all in place, while the means of turning them into lasting change are not.

For civilians

International accountability mechanisms continue to document and address human rights violations in Afghanistan. **UNAMA** publishes regular human-rights updates, while the **UN Special Rapporteur on Afghanistan**, Richard Bennett, reports to the Human Rights Council on the situation and emerging abuses. In July 2025, the International Criminal Court (ICC) issued its first arrest warrants in the Afghanistan situation against Taliban Supreme Leader Haibatullah Akhundzada and Chief Justice Abdul Hakim Haqqani, finding reasonable grounds to believe they were responsible for the crime against humanity of persecution on gender grounds under Article 7(1)(h) of the Rome Statute. In addition, the **Human Rights Council adopted Resolution 60/2 without a vote on 6 October 2025**, establishing an independent investigative mechanism to collect, preserve and analyse evidence of serious human-rights violations in Afghanistan. At the **ICJ level, Australia, Canada, Germany and the Netherlands initiated steps in September 2024 to hold Afghanistan accountable for alleged violations of CEDAW**, potentially leading to proceedings before the International Court of Justice. As of September 2026, however, the matter had not yet become a filed ICJ case; Canadian government documents confirm that negotiations with Afghanistan were the necessary first step, while recent reporting and civil-society statements indicate that the progress and next procedural steps remain unclear.

For the media

UNAMA and the Special Rapporteur monitor and publicly call for releases. **RSF, CPJ, Amnesty and HRW document cases.** Some donors fund exile media and journalist relocation. Gaps remain: no enforcement, limited funding, and exiled journalists remain exposed to pressure on their families.

For women and girls' rights

International and multilateral efforts have been undertaken to address the rights of women and girls in Afghanistan. **UN Women, UNICEF, UNESCO and UNAMA have supported programmes such as community- and home-based learning, online education, and assistance to women-led organisations.** The **Doha Process** and related engagement meetings have provided platforms for raising women's rights with the Taliban authorities, although progress on these issues has remained limited. International accountability mechanisms have also been pursued through ICC warrants and the Independent Investigative Mechanism, while some states have imposed travel bans and targeted sanctions on individuals. In addition, **international organisations and governments have provided funding for exile and online education, as well as scholarships for Afghan women studying abroad,** helping some women continue their education despite restrictions within Afghanistan.

QUESTIONS A RESOLUTION MUST ANSWER

1. How can human rights co-exist with current social and cultural policies followed by the Taliban regime?
2. How can girls' education and women's work be supported inside Afghanistan, and how could funds reach Afghan women-led groups safely?
3. How can media freedom and safe access to information be protected, including for journalists at risk?
4. Can a regional framework with Pakistan, Iran and UNHCR give Afghans legal status and fair, phased returns?
5. How should resettlement and complementary pathways be expanded, and how should responsibility be shared?
6. How should religious and ethnic minorities be protected and monitored?
7. How can accountability efforts (the investigative mechanism, ICC cooperation) be funded and supported?
8. How should states treat Afghans facing deportation, given non-refoulement obligations?
9. What support can be provided to exiled media and journalists in third countries?
10. How can women journalists be protected and their work supported?
11. How can digital access (internet, mobile networks) be treated as a protected right in conflict zones?
12. How can girls' education be sustained (online, community-based, in-exile) while the ban continues?
13. How can women be included in humanitarian delivery and the healthcare workforce?
14. How can women's participation in any future political process be guaranteed?
15. What aid can neighbouring nations provide for increasing stability?

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